# Ashcombe Advisory Partners LLC

www.ashcombeadvisory.com

February 2, 2024

## DRAFT -- superseded by the final version; not for distribution

Robert Smith
VP Finance
Gallegos, Pope and Marsh

Re: Reputation audit

Dear Robert:

We were pleased to learn that Gallegos, Pope and Marsh (the "Company") would like to proceed, and this letter sets out the terms on which Ashcombe Advisory Partners LLC ("Ashcombe," "we" or "us") will conduct a reputation audit on its behalf. We have tried to describe the work plainly, so that you and your colleagues know what to expect of us and what we will ask of you in return.

### Purpose and Scope

The purpose of the audit is to give the Company's leadership an accurate and independent picture of how the Company is regarded today by investors and analysts, by the financial and trade press, and in online discussion. We will set that outside view against the way the Company presents itself, and identify where the two diverge and, as far as the evidence allows, why.

The scope is limited to assessment and recommendation. Unless we agree otherwise in writing, it does not include drafting or issuing announcements, media relations on the Company's behalf, or support in the event of a crisis, although we would be glad to discuss any of these separately should the need arise.

### Our Approach

We will begin with a review of the Company's public record, including its announcements, investor materials and website, together with the coverage they have attracted. Alongside that review, we will hold confidential conversations with members of your leadership team and, with your approval of each name in advance, with a selection of investors, analysts and reporters who follow the Company.

Where it is useful, we will also look at how a small number of comparable companies are covered, so that the Company's position can be read in context rather than in isolation. We will agree the choice of those companies with you before we begin that comparison.

We will share our emerging observations with you informally before they are committed to writing, so that nothing in the final product comes as a surprise. The audit will conclude with a written report of findings and recommendations, which we will present to you and to any colleagues you wish to include.

**Who Will Do the Work**

I will lead the engagement personally and will remain responsible for the quality of its conclusions. Michelle Rose, a Communications Associate, will manage the work from day to day and conduct our conversations with the press, and Kimberly Le, a Communications Analyst, will lead our review of news and online coverage.

We understand that you will act as the Company's principal contact for the engagement. Unless you direct otherwise, we will route our requests for documents, introductions and scheduling through you. Should the needs of the engagement call for other members of the firm, we will tell you before involving them.

**What We Will Ask of the Company**

The value of an audit of this kind depends in large part on candor and access. We will ask the Company to provide the materials we reasonably request, to make the members of its leadership team available for interviews, and to tell us promptly of any development that may bear on how the Company is perceived while the work is under way.

**Commencement and Fee**

We will begin work on February 12, 2024. For the audit as described in this letter, the Company will pay Ashcombe a fixed fee of $45,500, which covers the professional time of the full team through delivery and presentation of the final report.

The fee will not change unless the scope does. If you ask us to extend the work, we will agree any additional fee with you in writing before we begin it.

**Billing and Payment**

We will invoice the fixed fee in monthly installments over the course of the engagement, and each invoice is payable upon receipt. Reasonable out-of-pocket expenses, such as travel undertaken at your request, will be billed at cost and only with your prior approval.

### Duration and Termination

The engagement will continue until we have delivered and presented our final report, unless it is ended sooner. Either party may terminate it at any time by written notice to the other, in which case the Company will pay for work performed and approved expenses incurred up to the effective date of termination.

### Confidential Information

We will hold in confidence all non-public information the Company provides to us, and all that we learn in the course of our interviews, and we will use it only for the purposes of this engagement. Those we interview will be told that their views will be shared with the Company in summary form and without attribution, and our report will honor that undertaking.

These obligations do not extend to information that is or becomes public through no fault of ours, or that we are required by law to disclose. They will survive the conclusion or termination of the engagement, and at your request we will return or destroy the Company's materials once the work is complete, subject to our ordinary record-keeping obligations.

### Limits of Liability

Our findings will reflect our professional judgment, based on the information available to us and the views of those we interview, and we cannot guarantee any particular response from investors, analysts or the press. Except in the case of our gross negligence or willful misconduct, our aggregate liability arising from this engagement will not exceed the fees paid to us under this letter, and neither party will be liable to the other for indirect or consequential losses.

Our role is advisory. Decisions about the Company's communications, and responsibility for any statement the Company makes publicly, remain with the Company.

### Governing Law

This letter will be governed by the laws of the state in which Ashcombe maintains its principal office, without regard to its conflict-of-law principles. It constitutes the entire agreement between us with respect to the audit and may be amended only in a writing signed by both parties.

We are looking forward to working with you. If these terms reflect your understanding, please sign below and return a copy to me, and Michelle Rose will contact you the same day to arrange the first of the leadership interviews.

Signed for Ashcombe Advisory Partners LLC and, in acceptance of these terms, for Gallegos, Pope and Marsh: